

		Here, Moving Party attempted to file a Cross-Complaint at the same time as filing their Answer to the Complaint. However, that document was rejected by the Court, thus necessitating this motion. (ROA 17). While the Responding party argues about procedural defects with the Motion, none of these alleged defects prejudice Responding Partys (“RP”). Although the Notice of Motion does not set forth the date, time, and location of the motion in the notice itself (CRC 3.1110(b)), that information is set forth in the Caption on the front page of the motion. Also, although RPs argue no proof of service was attached to the Motion, this Court’s files establish the motion (ROA 27) and exhibit list (including the proposed Cross-Complaint) (ROA 21) were e-served on 2/5/2026 (ROAS 23,25.) As such, the Motion is GRANTED. Proposed Cross-Complaint to be separately filed within 7 days of this order. Moving Party is to give notice.
6.	30-2025-01506656 Martinez vs. Kaufman	1. Case Management Conference 2. Demurrer to Complaint In light of the pending motion to consolidate, motion for leave to file cross-complaint and status conference re: settlement in related case No. 2024-01393434, styled <i>Kaufman v. Martinez</i>, the hearing on this motion is CONTINUED to October 22, 2026 at 1:30 p.m. in Department C34. Clerk to give notice.
7.	30-2024-01415577 Mejorado vs. General Motors, LLC	1. Motion to Strike or Tax Costs 2. Order to Show Cause re: Dismissal on Settled Case Defendant General Motors LLC (“Defendant”) moves to strike or tax certain costs claimed by plaintiffs Eric Mejorado and Elizabeth Mejorado formerly known as Elizabeth Aguilar (“Plaintiffs”), which Defendant argues were not reasonably incurred or necessary in the conduct of the litigation. Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2)-(3).) <u>Item 2 – Jury Fees</u> Defendant argues \$154.00 should be taxed because jury fees are only recoverable when a trial occurs and no jury was ever convened in this matter. Defendant cites <i>Perko’s Enterprises, Inc. v. RRNS Enterprises</i> (1992) 4 Cal.App.4th 238 but that case did not involve the recovery of jury fees. Jury fees are expressly recoverable under Code of Civil Procedure section 1033.5(a)(1). Thus, the Motion to Tax as to Item 2 is DENIED. <u>Item 1 – Filing Fees</u> Defendant argues \$93.48 in filing fees associated with Plaintiffs’ Motion to Compel should be taxed because these were optional costs that counsel elected.

Plaintiffs’ Motion to Compel was granted in part and denied in part. Characterizing the filing of at least partially meritorious discovery motion as optional is disingenuous, as is Defendant’s contention that the Motion to Compel served no purpose other than to increase Plaintiffs’ counsel’s costs. Plaintiffs incurred these filing fees to protect their rights with regard to discovery and ensure Defendant complied with its discovery obligations. Thus, these filing fees were reasonably necessary to the conduct of the litigation.

Defendant also moves to tax \$42.44 from the claimed filing fees, arguing that these EFM and payment processing fees are unnecessary luxuries and did not advance Plaintiffs’ case. “Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.” (Code Civ. Proc., § 1033.5(a)(14).) Here, electronic filing by represented parties is required. Thus, the EFM and paying processing fees were reasonably necessary to the conduct of the litigation. Further, they are reasonable in amount.

Thus, the Motion to Tax as to Item 1 is **DENIED**.

Item 8 – Expert Fees

Defendant argues \$275.00 should be taxed from the claimed expert witness fees because it was billed for case intake and analysis and was not reasonably incurred in the conduct of the litigation. Defendant argues this kind of pre-evaluation intake charge is the type of overhead expense that firms routinely absorb. Defendant also argues that \$116.00 billed for travel time must be taxed because expert travel is a routine overhead cost of doing business for an inspection and the cost was not reasonably incurred.

The Court finds that the case intake and analysis cost was incurred in Plaintiffs’ retention of an expert for the vehicle inspection. Plaintiffs’ retention of an expert for the inspection is plainly reasonable and Defendant’s argument that this cost was not reasonably incurred is not persuasive.

As to the latter argument, Defendant cites *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761. While *Ladas* states that “[r]outine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of the litigation” (*id.* at pp. 775-776), Plaintiffs’ expert here is not an attorney or firm employee. Further, an expert must attend a vehicle inspection in person and, therefore, the Court finds the travel costs were required and reasonably necessary.

Thus, the Motion to Tax as to Item 8 is **DENIED**.

9. 30-2025-01518230

**McKay vs. California
Department of Parks
and Recreation**

**1. Case Management Conference
2. Demurrer to Complaint
3. Motion to Strike Portions of Complaint**

Defendants California Department of Parks and Recreation and Brian Carlson (“Defendants”) filed a demurrer and motion to strike, attacking the original complaint filed on October 10, 2025.

The demurrer and motion to strike are **OFF CALENDAR AS MOOT** pursuant to Code of Civil Procedure section 472(a).

Code of Civil Procedure section 472(a) states: